



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

FEB 4 2003

DOT-E 13084

EXPIRATION DATE: November 30, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Schering-Plough Veterinary Operations, Inc.
Baton Rouge, LA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a flammable liquid approximately 200 feet on a public road, from one Schering-Plough location to another, as essentially not subject to 49 CFR Parts 172 and 173. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Parts 171-180 except as specified herein.
5. BASIS: This exemption is based on the application of Schering-Plough Veterinary Operations, Inc. dated July 24, 2002, submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Flammable liquids, n.o.s. (1-methoxy-2-propanol)	3	UN1993	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a 75 gallon non-DOT specification tank fabricated from type 316 stainless steel. The tanks are fabricated in accordance with the requirements of British Standard 5500. The serial numbers of the tanks are: V-805, V-813 and V-822. The tank must be placed into a steel frame that is securely mounted to the truck for transportation.

b. OPERATIONAL CONTROLS:

(1) Transportation is only authorized between:

Schering-Plough Veterinary Operations, Inc,
2667 West Dual Drive
Baton Rouge, LA 70814 and

Schering-Plough Operations, Inc,
10641 North Dual Drive
Baton Rouge, LA 70814

(2) Only one tank may be transported at one time on the vehicle.

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: None as a requirement of this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws 49 U.S.C. 5101 et seq:

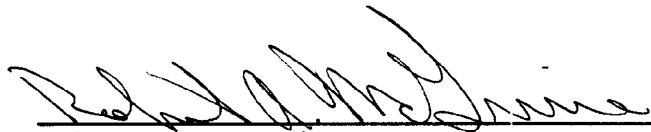
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

FEB 4 2003
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.
PO: DBurger